TOWNSHIP OF LINCOLN
CLARE COUNTY, P.O. BOX 239
LAKE GEORGE, MI 48633

Supervisor, Dennis Zimmerman
Clerk, Carol Majewski
Treasurer, Maggie Carey
Trustee, Jerry Bridges
Trustee, Mike Tobin

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, June 24, 2015

The meeting was called to order by Chair Godau at 5:00 pm.

Roll Call:
Present – Chair Godau, Bridges, McCaslin, Vice-Chair Swanson, Szczepanski, Zoning Administrator Carey, Building Inspector Mantei, Recording Secretary Sherrod
Absent – Secretary Engelhardt, excused
Public – 4 – Attorney Daniel W. White; Attorney Todd W. Grant; Alan Schultz; Carol Majewski

Approval of Minutes:
Regular Meeting minutes of May 13, 2015 – It was moved by Bridges and seconded by Swanson to accept the minutes as presented. Motion passed; all in favor.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated.

Public notice: Notice of this Public Hearing was posted in the *Clare County Cleaver* (Legal Section) on June 4, 2015. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA.

General Comments by Chair: Chair Godau summarized the purpose of this meeting because the prior meeting was held in November 2014.

Lincoln Township is a Zoned Township. Of sixteen townships in Clare, ten are zoned, six are not.

Lincoln Township is fortunate to have a separate Zoning Administrator and Building Inspector.

It is well documented that a building project must have a Zoning permit (approved) before a building permit can be issued.

Therefore, the first person on the scene is the Zoning Administrator. This did occur in June 2014 (two occurrences) with the Owner and Builder. Actual measurements were taken to assure proper location of structure and adherence to the fifty (50) foot setback from water's edge.

Site plan submitted by Owner/Builder was for the manufactured home. It did not show any other decks, walkways, or construction.

Builder originally applied for a building permit through Clare County on June 11, 2014. The Clare County Building Department does not have jurisdiction in Lincoln Township. The builder applying for the building permit was directed to Lincoln Township.

Approximately three plus weeks later the Builder or the Owner contacted the Lincoln Township Building Inspector.

On July 1, 2014, a phone discussion with the Builder's Representative and Building Inspector took place.

In efforts to make up lost time the Building Inspector issued a permit with assurance from the Builder's Representative that they had a valid zoning permit. They did not.

Since the manufactured home has three (3) openings, and two (2) decks were asked for, the assumption was that the larger deck would go on the north door and the smaller on the east door.

No five foot (5') walkway was requested at that time.

Leaving the third opening to be perhaps pre-cast concrete or an earth berm build-up (brick wall, block pavers, etc.) which is allowed in our Zoning Ordinance.

After the supporting cement walls were finished an error existed by the Builder whereas the walls were too far apart for the manufactured home. They poured a new wall inside the old the entire length of the home, leaving approximately a twelve inch (12") ledge.

It is presumed that the Builder/Owner agreed to build a five foot (5') walkway in order to hide the ledge.

Again, this was not on site plan or permits.

At some point the Owner/Builder made the decision to build the ten by sixteen foot (10 x 16') deck facing the water's edge at the third opening, disregarding the Zoning Administrator's direction that the structure cannot extend into the fifty foot setback to the water's edge.

Therefore an appeal for a variance was required and a Zoning Board of Appeals meeting was conducted on November 12, 2014, with a 5-0 vote denying the variance to extend into the fifty foot setback.

The appellant (owner) filed for an appeal to the Circuit Court.

Now we are to the following stage.

Purpose: This Limited Re-Hearing, by order of Clare County Circuit Court, was remanded back to the Lincoln Township Zoning Board of Appeals to address three (3) issues/questions as follows:

Issue/Question # 1 – Is the structure at issue a deck or an open porch?

a. Zoning Administrator's Report: See Attachment #1

ZA Carey read the definitions of deck and porch and proceeded to describe the existing structures in question.

b. Presentation on behalf of applicants

Attorney Todd Grant presented photos of the structures in question. He stated that ZA Carey is correct in that the existing definitions in the ordinances

must be followed. He explained that rule #1 is to look at the legal definitions and not go by what the structures are commonly being called. In rule #2 he referred to the way courts interpret rules and statutes. An open porch, by definition, is a covered entrance; the structure projects out from the main structure. It has an attached or integral roof. Definition of porch doesn't say that after a certain size it becomes a party deck. Definition of deck says that it can be attached or not as long as it is raised up and supported; it is a deck. There are no limitations of size for a deck. He stated that there is a difference in the zoning of this property being R1 or R2.

Carey stated that Mr. Schultz entered R1 on the zoning permit. The Zoning Administrator and the Township ZBA did consider this parcel as R2 in their decision making process.

Godau disagreed in that the builder applied for a deck; called it a deck. This is the generic sense of a deck. It is not simply an entrance into or out of the house.

Grant: you said that the builder applied for a deck. Just because people call it a deck, doesn't make it a deck. You have to look at the legal definition. Perhaps the builder didn't read the zoning ordinance and therefore called it a deck mistakenly.

Godau then read the zoning ordinance's description of a deck. (See Zoning Administrator's Attachment #1)

Grant referred back to the concept that the specific will lead the general. Therefore the definition of porch as having a roof makes it more specific.

Godau: if you use the porch definition then you could conceivably build it all the way to the lake.

Grant: no, because you would still have to abide by the setbacks.

Grant: the second point is that it has been stated that because of the size it is solely for the recreation. But recreation is not stated in the ordinance. The assumption on your part is that due to the size it will be used for recreation.
A porch goes beyond a simple covered area to enter the house; it is for sitting on for leisure.

Another point is that the porch is a subset of a deck. Decks and porches are different items and are treated that way in the ordinance.

The way clearly points to this being an open porch.

Godau asked for questions and comments from the ZBA members concerning the question of deck or porch.

Godau moved to accept the ZA's written explanation as it is written for a definition of a deck. Bridges supported.

c. Comments/questions/ decision by ZBA members
Roll Call Vote: Godau: Yes; Bridges: Yes; McCaslin: Yes; Swanson: Yes; Szczepanski: Yes

Motion passes 5-0

Issue/Question #2 – For Zoning purposes, is the subject deck/walkway governed by a fifty (50) foot front setback or is it governed by a twenty-five (25) foot rear setback because the two lots on which the home is situated have no water frontage?

a. Zoning Administrator's Report: Attachment #2
ZA Carey read his statement making the point that this property is water frontage and therefore governed by a fifty foot setback.
Godau also read a statement from the Lincoln Township Assessors stating that it is lakefront property and has been in its entirety since its inception.

b. Presentation on behalf of applicants
Attorney Grant presented the zoning map. 1. Referring to the documents from the original case, he said that it was listed as being R1 while it is actually R2. He pointed out the property as being R2 on the map. The rear yard setback for R2 is 25 feet. Therefore the structure is within the setback as it sits 52 or 55 feet from the water. He showed the specific map of the lots indicating which lots the structure occupies. Grant reviewed how property is defined by lot lines. Zoning district boundaries are defined by the lot lines.

Godau: There are many examples within the Township where combined lots are considered one parcel.

Grant: 2. What is a waterfront lot? Has frontage directly on the river or lake. Water frontage makes up the front lot. Definitions compel you to look at each

parcel and not the whole swatch of parcels. The home is rectangular and goes down the entire length of #15 & #16. The only parcels involved are the ones where the house rests. No debate that Lot #17 is a waterfront lot; he doesn't think that Lot 14 is a waterfront lot as it only touches the water on one point; Numbers #15 & #16: Lot #17 occupies the entire water front in front of the other two. Lot #15 doesn't touch the seawall so is not waterfront; #16 is separated from the seawall by #17 & #15 so is not waterfront either.

Godau disagreed with the concept of continuing lot dimensions to prove the point. He showed Grant a diagram that proved his point. Grant withdrew this argument.

Bridges stated that the township is not authorized to combine lots. (Making reference to Clare County Register of Deeds) (Lot of Record)

Schultz stated that he never requested that the lots be combined. When he bought it he was told that he was buying four lots, not combined into one.

Bridges: are you paying taxes on one lot?

Schultz: the taxes come on separate lots.

Godau said that the taxes are on one parcel which includes the four lots. It doesn't matter who asked for what. You are taxed on one parcel so it is all waterfront.

Grant: there is a difference between how it is taxed and how you look at the zoning ordinances.

Godau: We have a Zoning Administrator and Building Inspector who have to deal with what is at our hands. The paperwork shows his property as waterfront. The matter all comes from the fact that you totally disregarded what the Zoning Administrator said. We have to deal with the way it is assessed.

Schultz: when Zoning Administrator came out he thought it was four lots and now all of a sudden it is one lot. Why can the neighbor get a variance and I can't? If that deck being that close to the water isn't doing any harm why can't I have it?

White stated that it seems to be devolving into an argument.

Godau: you stated that you allowed the township to put in a drain through your property; I talked to the fire department and it is not on your property. In referring

to the neighbors' deck; this was there before the ordinance of 2003 and not as recent as you indicated. ZBA has to look at each case on its own merits and can't just look at what exists. The Zoning Administrator told you from the beginning that you couldn't have your structure extend into the fifty foot setback to the water's edge. We are here because you didn't follow the first words from the township official.

Grant: in looking at this whole situation, zoning ordinances are powerful and it is good that townships have them. He used an example from the Ann Arbor area concerning Wal-Mart and a heated debate about its acceptance. He believes that the Schultzes did not need a variance in the first place. In the case of his neighbors, they were grandfathered in but it doesn't really apply to this situation. There has been a lot said about the parcel being treated as one parcel for taxes. But for ordinances it needs to be treated as the separate lots. If the Schultzes didn't own #14 and #17 they wouldn't have waterfront. I still don't think they have waterfront because you only look at the lots where the house is, being on #15 & #16. The way the definitions work; he doesn't think their property is waterfront.

Carey: The legal description shows this as one lot of record as shown by the township assessors. Carey showed the paper work that he refers to which is the definition of Lot of Record within the Township Zoning Ordinance, page 14, paragraph G.

Grant: I had missed this definition of "lot of record". But these lots are still plotted out as individual lots. I have nothing else to add to this issue.

Bridges: you were saying that these are R2; are you saying that R2 can't be waterfront?

Grant: No, I am not saying that.

Discussion about lots #14 & #17 and how they intersect and touch water between Grant and Bridges.

c. Comments/questions/ decision by ZBA members

McCaslin asked about the general description of the lots. For taxes it is recorded as one lot?

Carey: yes, one tax i.d.

Chair Godau made a motion to accept the Zoning Administrator's written explanation that subject property is waterfront parcel and therefore is governed by a 50 foot front setback. Seconded by Bridges.

Roll Call Vote: Godau: Yes; Bridges: Yes; McCaslin: Yes; Swanson: Yes; Szczepanski: Yes

Motion passed 5-0.

Break requested by Grant. Five minute break was taken.

Issue/Question #3 – Should the Township be estopped from denying the requested variance because it granted a building permit on July 1, 2014, which referenced the subject deck?

a. Zoning Administrator's Report: Attachment #3

ZA Carey read his statement that the township should not be estopped from denying the requested variance.

b. Presentation on behalf of applicants

Attorney Grant cited a case in another county where an inadvertent granting of a permit caused a township to be estopped and lost the case.

Grant: Building Inspector Mantei, around July 1, granted a permit which refers to two covered decks. The township knew there were two decks in early July even though they weren't included on the site plan. You can't just walk out of a house without an entry way, so everyone knew there would be decks even though they were not on the site plan. The builder was surprised by this as she assumed that the Zoning Administrator and Building Inspector both knew about the decks being included in the plans. Alan Schultz was not told until the end of August that there was a building problem. This was after the construction was finished. Even though there are bit and pieces of information missing in the paperwork, I am sure that Building Inspector Mantei was aware of the decks and was making visits to the site. If something had been said in July, something could have been adjusted. This is something that should have been brought to their attention sooner.

Godau: The first step is a valid zoning permit. Zoning Administrator Carey spent time with the owner and told him clearly that you cannot extend into the 50 foot setback to the water's edge. We knew he had to do something to satisfy his three openings. He had a hidden agenda. He had an old deck that he was going to just push up against the third door. So there was some misleading in his head as he had to come up with something for the third opening. It all comes down to one basic

fact; he did not listen to Zoning Administrator Carey that you cannot extend into the 50 foot setback.

Grant: What counts is what is in the legal documents. That is what the court will look at. Looking at the written record: there is a signed and approved building permit and a signed and approved zoning permit. It is a small community, therefore the Zoning Administrator and Building Inspector must have some communication on a regular basis.

Carey: We don't see each other all that often as our duties don't always require our being at the hall at the same time.

Bridges spoke to the awareness of the builder concerning the status of the permits. She had shown some confusion on this at the original hearing.

Grant: Before the permit is issued, the two officials must both be on board and make sure all the conditions are met.

Mantei: The zoning was approved before the building permit was written. There were two decks referenced on the building permit and there are three openings on the home.

White: Neither the building application nor the building permit indicated where the subject large deck was to be located.

Godau: It all comes back to the very first step: the zoning permit. You were told that you couldn't build in that spot, but you didn't listen.

Schultz: I marked the building lines in paint on the property and showed it to Carey. They measured several times and showed the place where the house could go legally. The application shows one deck on the front and one on the back.

Mantei & Godau: no, the building permit does not show deck location or a five foot walkway.

Schultz: the builder stated that she assumed that since she got the permit that the zoning was accepted. She didn't know she needed another permit for the decks. The third deck was never supposed to be attached to the ground. It was moved from my trailer and was supposed to be placed on cement piers. I was not planning

to keep it. But the contractor didn't follow instructions and put it in permanently on posts with new steps.

Godau: this made the structure a deck requiring both zoning and building permits which were never requested.

c. Comments/questions/ decision by ZBA members

Chair Godau made a motion that the Township (ZBA) determine that it is not estopped from denying the requested variance because it granted a building permit on July 1, 2014, which referenced the subject deck.

Roll Call Vote: Godau: Yes; Bridges: Yes; McCaslin: Yes; Swanson: Yes; Szczepanski: Yes

Motion passed 5-0.

Public Comment: None

Discussion and Further Questions by ZBA Members:
Godau: we were here to decide on the three questions and that is what we have done. These minutes can be approved at the next ZBA meeting, tentatively to be held on Wednesday, August 12. Both attorneys agreed.

Adjournment: Bridges moved to adjourn; Swanson seconded. Motion passed with all in favor. Meeting adjourned at 6:52 pm.

Respectfully Submitted,

Deb Sherrod, Recording Secretary

Attachments follow containing the full Zoning Administrator's report.

Master Copy

Question 1. Zoning Administrators report for issue: Deck/Porches. Our Zoning Ordinance Definition of Deck is:

Deck: An exterior floor system or structure, either attached or unattached to a dwelling, that is above grade at any portion of the structure supported on at least two opposing sides by an adjoining structure and/or posts, piers, or other independent supports.

Mr. Schultz applied for a deck, application enclosed. There are 4 example illustrations of decks, enclosed. They show the structure is attached to the main structure, above grade and supported on posts. The last illustration number 4 is of Mr. Schultz's deck.

Our Zoning Ordinance Definition of Porch is:

Porch, Enclosed: A covered entrance to a building or structure which is totally enclosed or screened, and projects out from the main wall of said building or structure and has a separate roof or an integral roof with the principal building or structure to which it is attached.

Porch, Open: A covered entrance to a building or structure which is unenclosed except for columns supporting the porch roof, and projects out from the main wall of said building or structure and has a separate roof or integral roof with principal building or structure to which it is attached.

Our definition of covered porches and enclosed porches says projects out from the main structure. Covered unenclosed porch has columns supporting the roof. Neither say anything about above grade nor supported on posts. Examples are enclosed illustrations 5 & 6.

Variance denied 11-12-14

Township of Lincoln, Clare County
P.O. Box 239
Lake George, MI 48633
Roger Carey, Zoning Administrator
Phone 989-588-9841 Ext. 6 or www.lincolntwp.com
APPLICATION FOR ZONING PERMIT - FEE $25.00

Applicant's Name ALAN SCHULTZ Date 8/27/14
Mailing Address 40060 CARINI
City STERLING HEIGHTS State MICH Zip 48313
Home Phone #(586) 668-1339 Cell (586) 212-1335

ZONING APPLICATION FOR

New Home Construction 210 BRINGOLD AVE Home Addition/Remodel
Attached Garage NO Accessory/Utility Bldg
Deck FRONT 14x16 w/5' walk wy Other (Specify)
Sq. Ft. of Current Residence If Construction is Larger than 120 Sq. Ft. it needs a Building Permit

* Deck

THIS APPLICATION MUST BE SIGNED BY THE PROPERTY OWNER(S) OR THE OWNER(S) MAY PROVIDE A LETTER AUTHORIZING THE APPLICANT TO ACT ON THEIR BEHALF.
By signing this you are authorizing the Zoning Administrator to enter your property to validate this permit.

PROPERTY IDENTIFICATION AND LOCATION

Tax ID # 018-010-460-014-01 Township Section # 7
Recorded Plot or Subdivision Name N/A
Block # Lot # 14 15 16 Or Attached Legal Description
Property Owner Name ALAN SCHULTZ
Property Owner's Phone #(586) 668-1339 Address of Property 210 BRINGOLD AVE
Nearest Main Road SHINGLE LAKE Directions to Property

SITE PLAN INFORMATION

Site Plan (drawing or sketch) must be submitted with application. Include all structures on property and indicate the proposed new structure. Measurements must be accurate. Whenever possible please stake out project on the property.

TYPE OF PLAN SUBMITTED Drawing MORTGAGE INSP Sketch

ZONED (CHECK ONE)

R-R Rural Residential	R-1 Single Family Residential ✓
R-2 Single Family/Two Family	R-3 Multiple Family Residential
R-4 Manufactured Home Pk District	C-1 Central Business District
C-2 General Commercial District	M-1 Light Industrial District
	M-2 Utility Industrial District

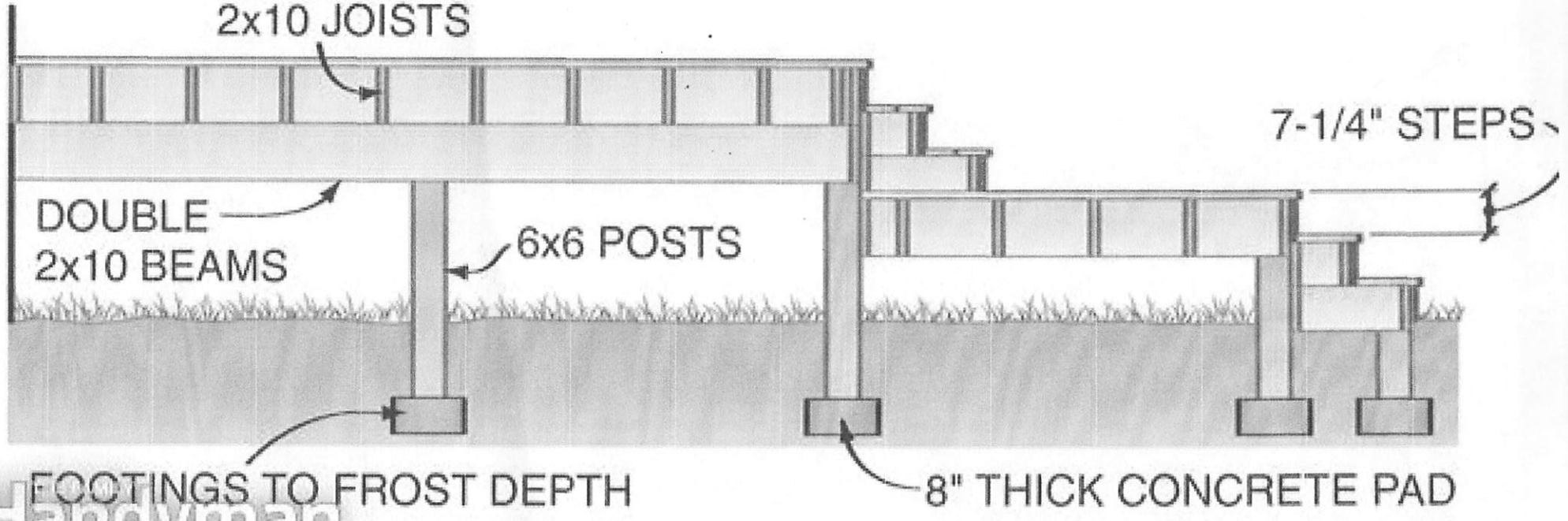
Mr Schultz Filed This out

PROPERTY SIZE Width 150 Depth 148' SQ. FEET 22,200 ±

WELL YES- SEPTIC TBE NEW

CONTINUED ON BACK

Figure B
Deck Framing Elevation



Handyman

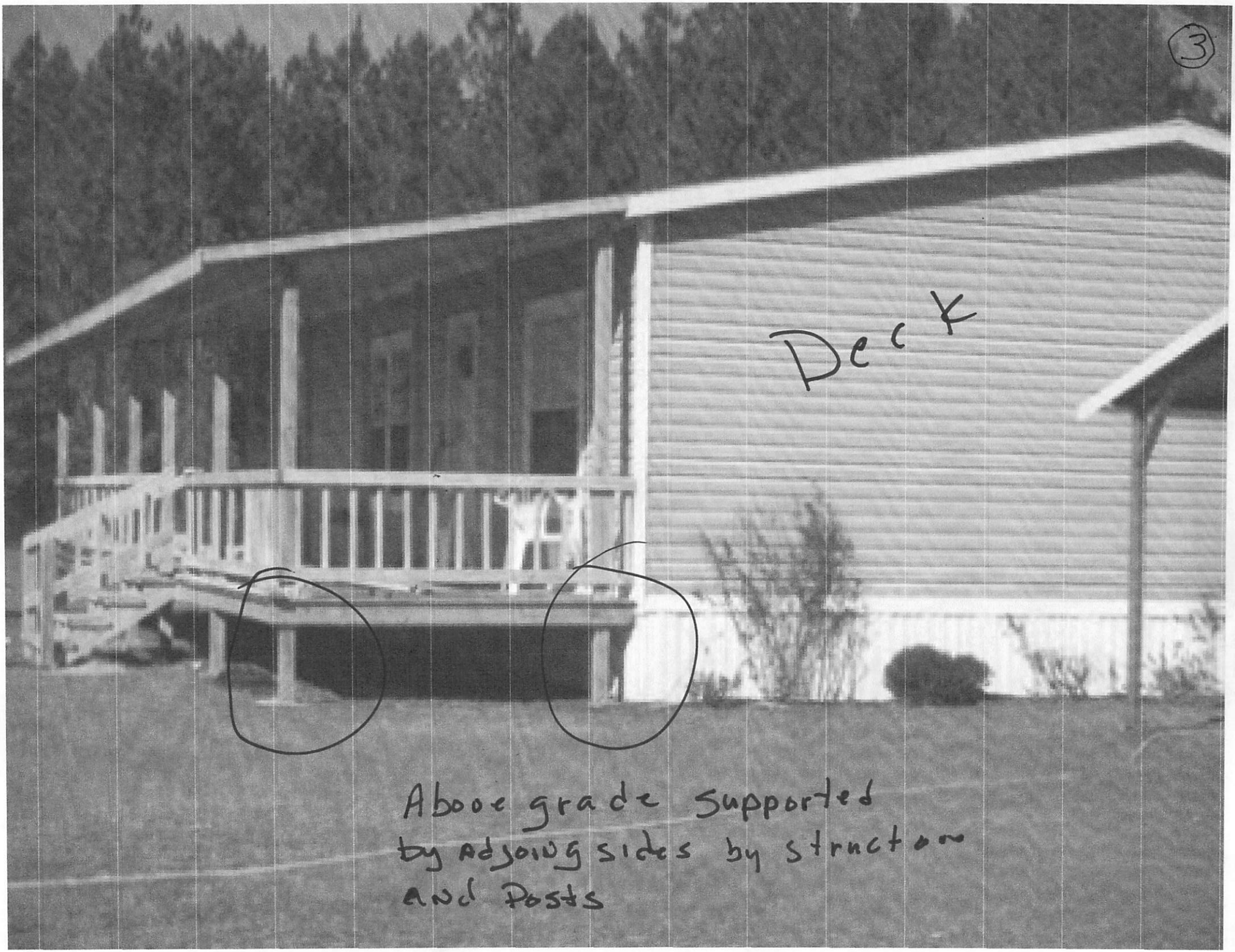
Support Posts

Figure B: Framing Elevation

(2)

Deck - Above Grade / Attached to Dwelling supported on at least two sides by a structure and/or posts

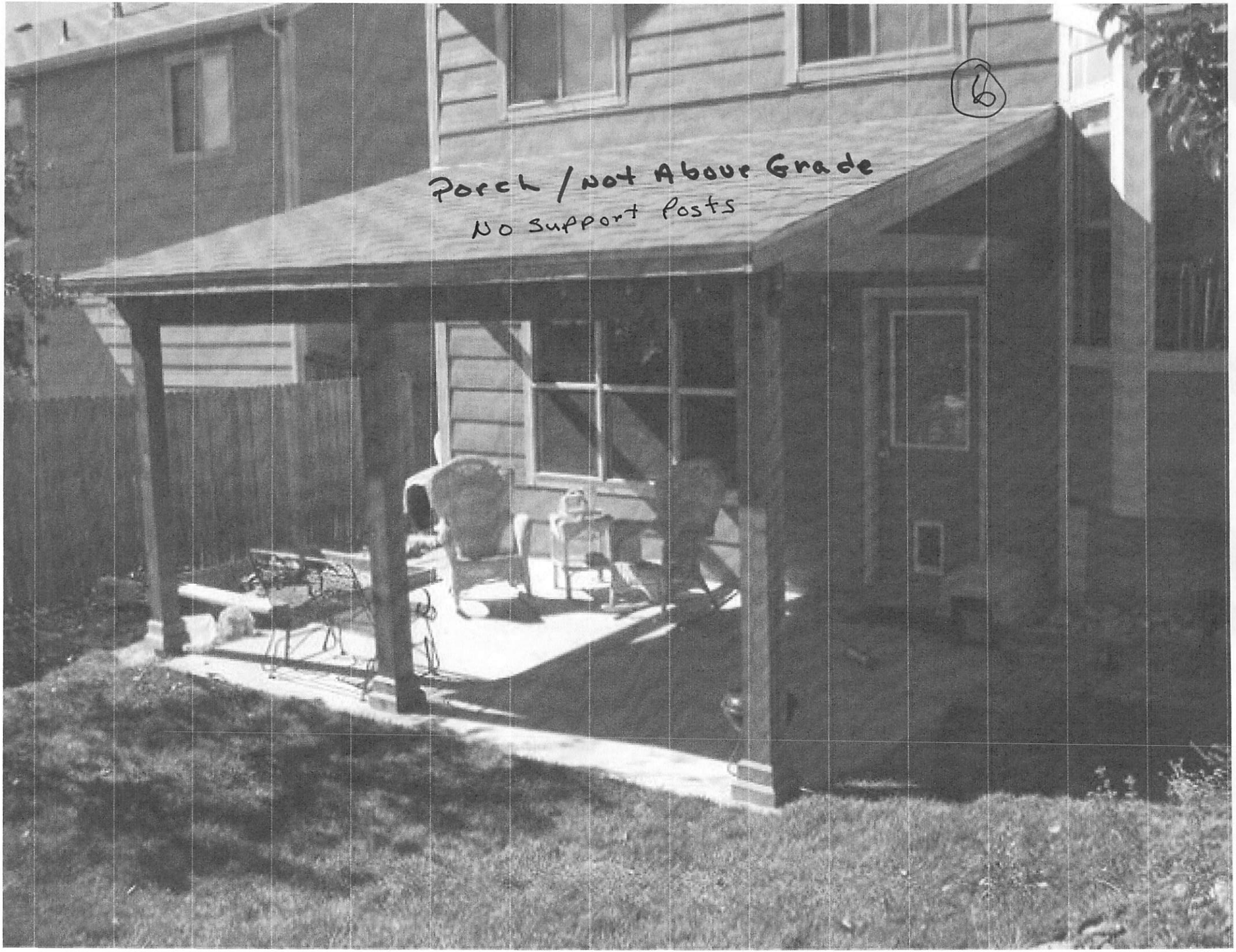



3
Deck
Above grade supported
by adjoing sides by structure
and Posts


4
Deck - Above Grade / Attached to Dwelling
Supported on at least two sides by a structure
and/or Posts


5
Porch
Covered entrance
unenclosed except for columns
supporting the Porch Roof
Projects From Main wall
integral Roof
Not Above Grade
Front-Porch-Ideas-And-More.com

Porch


6
Porch / Not Above Grade
No Support Posts

Master Copy

Question 2. Zoning Administrators report for Issue: Waterfront property. Our Zoning Ordinance definition of Waterfront Property is:

Waterfront Lot: A lot having frontage directly upon a river, stream, or a natural or man-made lake. The portion adjacent to the water is considered the front of the lot.

Our definition of Lot of Record is:

Lot of Record: A parcel of land defined by a legal description and recorded in the office of the Clare County Register of Deeds on or before the effective date of this Ordinance (2003). This lot of record has existed prior to 2001 when Mr. Schultz purchased the property & continues.

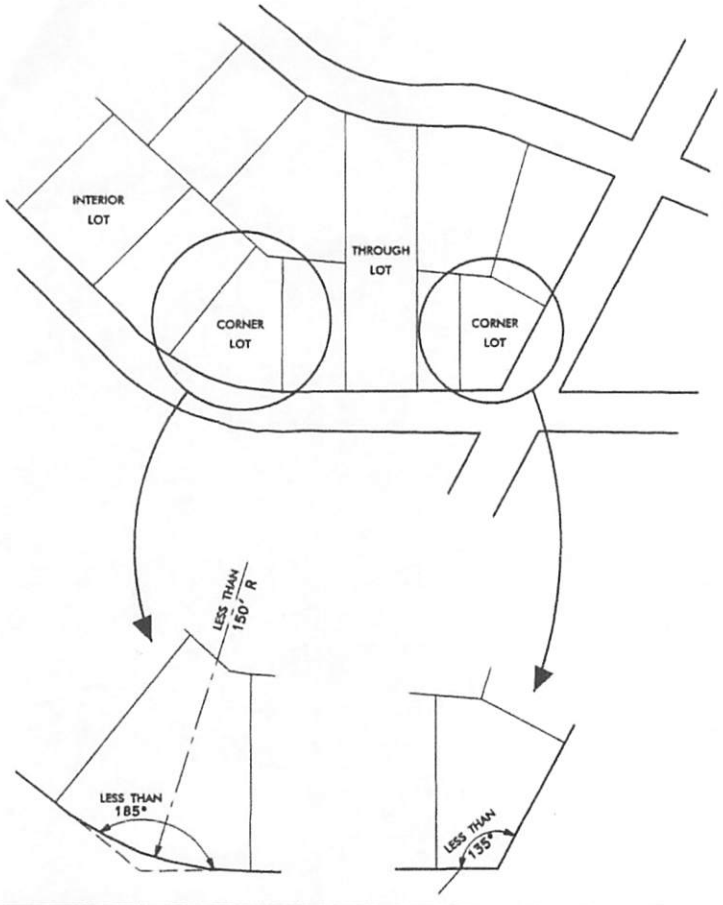
Individual lots 14, 15, 16 & 17 were combined into the lot of record, 010-460-014-01. At that time the individual lots ceased to exist except for matters of historical record.

BS&A software describes the lot of record as 010-460-014-01, T18N RSW Section 7, Lots 14, 15, 16 & 17 Sherwood's Addition to Lake George Summer Resort.

The Assessors card describes lots, #010-460-014-01 as, waterfront. Please see enclosed letter.

There fore This property is waterfront and Deck is governed by 50' setback

Figure 5
INTERIOR, THROUGH & CORNER LOTS



f. Lot of Premises: The parcel of land occupied or to be occupied by a use or building and its accessory buildings or structures together with such open spaces, minimum area, and width required by this Ordinance for the district in which located, but not including any area within any abutting right-of-way or traffic lane.

g. Lot of Record: A parcel of land defined by a legal description and recorded in the office of the Clare County Register of Deeds on or before the effective date of this Ordinance.

h. Lot Width: The horizontal distance between the side lot lines, measured at the two (2) points where the building setback line intersects the side lot line.

i. Rear Lot Line: The lot line being opposite the front lot line. In the case of a lot irregularly shaped at the rear, the rear lot line shall be an imaginary line parallel to the front lot line, not less than ten (10) feet long lying farthest from the front lot line and wholly within the lot.

j. Side Lot Line: Any lot line not a front lot line or a rear lot line. A side lot line separating a lot from a street is a side street lot line. A side lot line separating a lot from another lot or lots is an interior side lot line.

k. Through Lot: A lot other than a corner lot having frontage on two (2) more or less parallel streets.

l. Waterfront Lot: A lot having frontage directly upon a river, stream, or a natural or man-made lake. The portion adjacent to the water is considered the front of the lot.

m. Zoning Lot: A contiguous tract of land which at the time of filing for a zoning permit is designated by its owner or developer as a tract to be used, developed, or built upon as a unit, under single ownership.

65. Manufactured Home: Factory-built single-family structure that is manufactured under the authority of 42 U.S.C., Sections 5401 to 5426 (National Manufactured Home Construction and Safety Standards Act 1974), is transportable in more than one section, is built on a permanent chassis and does not have hitch, axles, or wheels permanently attached to the body frame.

General Property Information

Lincoln Township

[Back to Non-Printer Friendly Version] [Send To Printer]

Parcel: 010-460-014-01 **Unit:** Lincoln Township **Data Current As Of:** 1/30/2015 5:38:13 PM

Property Address [collapse]

~~010-460-~~
15, 16017 are not even registered on BSA

S BRINGOLD AVE
LAKE, MI 48632

Owner Information [collapse]

There is no number for these properties

SCHULTZ ALAN E & JANE A
40060 CARINI
STERLING HEIGHTS, MI 48313

Unit: 010

Taxpayer Information [collapse]

SCHULTZ ALAN E & JANE A
40060 CARINI
STERLING HEIGHTS, MI 48313

General Information for Tax Year 2014 [collapse]

Property Class:	401 - Res - Improved 401	**Assessed Value:**	$52,500
School District:	18020 - Farwell	**Taxable Value:**	$52,500
State Equalized Value:	$52,500	**Map #**	SHINGLE LAKE
User Num Idx	0	**Date of Last Name Chg:**	01/28/2014
		Date Filed:	
		Notes:	N/A
Historical District:	N/A	**Census Block Group:**	N/A

Principal Residence Exemption	June 1st	Final
2015	0.0000 %	-
2014	0.0000 %	0.0000 %

Previous Year Info	MBOR Assessed	Final S.E.V.	Final Taxable
2013	$52,000	$52,000	$52,000
2012	$45,200	$45,200	$45,200

Land Information [collapse]

	Frontage		Depth
Lot 1:	102.00 Ft.		113.00 Ft.
Lot 2:	0.00 Ft.		0.00 Ft.
Lot 3:	0.00 Ft.		0.00 Ft.
Total Frontage:	102.00 Ft.	**Average Depth:**	113.00 Ft.

Total Acreage:	0.27		
Zoning Code:			
Total Estimated Land Value:	$58,200	**Mortgage Code:**	N/A
Land Improvements:	$644	**Lot Dimensions/Comments:**	
Renaissance Zone:	NO		
Renaissance Zone Expiration			

Date:	
ECF Neighborhood Code:	Res 4 - R - Shingle Lake

Legal Information for 010-460-014-01 [collapse]

T18N R5W SEC 7 . LOTS 14-15-16-17 SHERWOOD'S ADDITION TO LAKE GEORGE SUMMER RESORT.

Sales Information

1 sale record(s) found.

Sale Date	Sale Price	Instrument	Grantor	Grantee	Terms Of Sale
01/01/2001	$67,500.00	WD			Download

Building Information

1 building(s) found.

Description	Floor Area	Yr Built	Est. TCV
[+] Residential Building 1	720 Sq. Ft.	0	$53,501

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Privacy Policy

Parcel Number: 18-010-460-014-01 Jurisdiction: Lincoln Township County: Clare Printed on 04/15/2015

Grantor	Grantee	Sale Price	Sale Date	Inst. Type	Terms of Sale	Liber & Page	Verified By	Prcnt. Trans.
		67,500	01/01/2001	WD	Download	W729:570		0.0

Property Address
S BRINGOLD AVE

Owner's Name/Address
SCHULTZ ALAN E & JANE A
40060 CARINI
STERLING HEIGHTS MI 48313

Taxpayer's Name/Address
SCHULTZ ALAN E & JANE A
40060 CARINI
STERLING HEIGHTS MI 48313

Tax Description
T18N R5W SEC 7 . LOTS 14-15-16-17 SHERWOOD'S ADDITION TO LAKE GEORGE SUMMER RESORT.

Comments/Influences
NV SHED

Class: Res - Improved 40 Zoning:
School: Farwell
P.R.E. 0%
Map #: SHINGLE LAKE
2015 Est TCV 112,333 TCV/TFA: 156.02

Building Permit(s)	Date	Number	Status
Modular	06/01/2014	L-37-14	Entered
Pole Barn	04/13/2012	L-11-12	Complete

X Improved | Vacant

	Public Improvements
	Dirt Road
X	Gravel Road
	Paved Road
	Storm Sewer
	Sidewalk
	Water
	Sewer
X	Electric
	Gas
	Curb
	Street Lights
	Standard Utilities
	Underground Utils.

	Topography of Site
	Level
	Rolling
	Low
X	High
	Landscaped
	Swamp
	Wooded
	Pond
X	Waterfront
	Ravine
	Wetland
	Flood Plain

Who When What

Land Value Estimates for Land Table Res 5.R - Shingle Lake Subs

* Factors *

Description	Frontage	Depth	Front	Depth	Rate	%Adj.	Reason	Value
Shingle Lake	102.00	113.00	1.0000	0.9508	600	100		58,188
102 Actual Front Feet, 0.27 Total Acres							Total Est. Land Value =	58,188

Land Improvement Cost Estimates

Description	Rate	CountyMult.	Size	%Good	Cash Value
D/W/P: 3.5 Concrete	2.98	1.00	480	45	644
Total Estimated Land Improvements True Cash Value =					644

Year	Land Value	Building Value	Assessed Value	Board of Review	Tribunal/ Other	Taxable Value
2015	29,100	27,100	56,200			53,340C
2014	29,100	23,400	52,500			52,500S
2013	29,100	22,900	52,000			52,000S
2012	29,100	16,100	45,200			45,200S

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*** Information herein deemed reliable but not guaranteed***

Building Type

	Single Family
X	Mobile Home
	Town Home
	Duplex
	A-Frame

X	Wood Frame

Building Style: MHS

Yr Built	Remodeled
0	0

Condition for Age: Good

Room List

	Basement
	1st Floor
	2nd Floor
	Bedrooms

(1) Exterior

X	Wood/Shingle
	Aluminum/Vinyl
	Brick
	Insulation

(2) Windows

	Many		Large
X	Avg.	X	Avg.
	Few		Small

Wood Sash
Metal Sash
Vinyl Sash
Double Hung
Horiz. Slide
Casement
Double Glass
Patio Doors
Storms & Screens

(3) Roof

	Gable		Gambrel
	Hip		Mansard
X	Flat		Shed

Asphalt Shingle

Chimney: Vinyl

(3) Roof (cont.)

Eavestrough
Insulation
0 Front Overhang
0 Other Overhang

(4) Interior

	Drywall		Plaster
	Paneled		Wood T&G

Trim & Decoration

	Ex	X	Ord		Min

Size of Closets

	Lg	X	Ord		Small

Doors		Solid	X	H.C.	

(5) Floors

Kitchen:
Other:
Other:

(6) Ceilings

(7) Excavation

Basement: 0 S.F.
Crawl: 0 S.F.
Slab: 0 S.F.
Height to Joists: 0.0

(8) Basement

Conc. Block
Poured Conc.
Stone
Treated Wood
Concrete Floor

(9) Basement Finish

Recreation SF
Living SF
Walkout Doors
No Floor SF

(10) Floor Support

Joists:
Unsupported Len:
Cntr.Sup:

(11) Heating/Cooling

X	Gas		Oil		Elec.
	Wood		Coal		Steam

X Forced Warm Air
Wall Furnace
Warm & Cool Air
Heat Pump

Central Air
Wood Furnace

(12) Electric

0 Amps Service

No./Qual. of Fixtures

	Ex.	X	Ord.		Min

No. of Elec. Outlets

	Many	X	Ave.		Few

(13) Plumbing

	Average Fixture(s)
1	3 Fixture Bath
	2 Fixture Bath
	Softener, Auto
	Softener, Manual
	Solar Water Heat
	No Plumbing
	Extra Toilet
	Extra Sink
	Separate Shower
	Ceramic Tile Floor
	Ceramic Tile Wains
	Ceramic Tub Alcove
	Vent Fan

(14) Water/Sewer

	Public Water
	Public Sewer
1	Water Well
1	1000 Gal Septic
	2000 Gal Septic

Lump Sum Items:

(15) Built-ins

	Appliance Allow.
	Cook Top
	Dishwasher
	Garbage Disposal
	Bath Heater
	Vent Fan
	Hot Tub
	Unvented Hood
	Vented Hood
	Intercom
	Jacuzzi Tub
	Jacuzzi repl.Tub
	Oven
	Microwave
	Standard Range
	Self Clean Range
	Sauna
	Trash Compactor
	Central Vacuum
	Security System

(15) Fireplaces

	Interior 1 Story
	Interior 2 Story
	2nd/Same Stack
	Two Sided
	Exterior 1 Story
	Exterior 2 Story
	Prefab 1 Story
	Prefab 2 Story
	Heat Circulator
	Raised Hearth
	Wood Stove
	Direct-Vented Ga

Class: Low
Effec. Age: 20
Floor Area:
Total Base Cost: 54,370
Total Base New : 74,486
Total Depr Cost: 44,584
Estimated T.C.V: 53,501

CntyMult
X 1.370
E.C.F.
X 1.200

(16) Porches/Decks

Area	Type
210	WGEP (1 Story)

(17) Garage

Year Built: 1984
Car Capacity:
Class: CD
Exterior: Siding
Brick Ven.: 0
Stone Ven.: 0
Common Wall: Detach
Foundation: 18 Inch
Finished ?:
Auto. Doors: 0
Mech. Doors: 0
Area: 440
% Good: 53
Storage Area: 0
No Conc. Floor: 0

Bsmnt Garage:

Carport Area:
Roof:

< Cost Estimates for Res. Building: 1 Mobile Home Class: Low Quality >

(11) Heating System: Forced Warm Air

Unit	Exterior	Roof	Rate	Heat/Roof	Ext.(%)	Size	Cost
BaseUnit	Ribbed	Metal	31.07	0.00	0	720	22,370
Other Additions/Adjustments				Rate		Size	Cost
(2) Skirting							
Metal Enamel				5.43		144	782
(9) Foundation							
Foundation Wall: Concrete				7.13		0	0
(14) Water/Sewer							
Well, 50 Feet				1575.00		1	1,575
1000 Gal Septic				2720.00		1	2,720

Phy/Ab.Phy/Func/Econ/Comb.%Good= 46/100/100/100/46.0, Depr.Cost = 17,297

Separately Depreciated Items:

(16) Porches			
WGEP (1 Story), Standard	28.83	210	6,054
County Multiplier = 1.37 =>	Cost New =		8,294
Phy/Ab.Phy/Func/Econ/Comb.%Good= 53/100/100/100/53.0,	Depr.Cost =		4,396
(17) Garages			
Class:CD Exterior: Siding Foundation: 18 Inch (Unfinished)			
Base Cost	18.90	440	8,316
County Multiplier = 1.37 =>	Cost New =		11,393
Phy/Ab.Phy/Func/Econ/Comb.%Good= 53/100/100/100/53.0,	Depr.Cost =		6,038
Class:CD Exterior: Pole Foundation: 42 Inch (Unfinished)			
Base Cost	10.46	1200	12,552
County Multiplier = 1.37 =>	Cost New =		17,196
Phy/Ab.Phy/Func/Econ/Comb.%Good= 98/100/100/100/98.0,	Depr.Cost =		16,852
	Total Depreciated Cost =		44,584
ECF (R - Shingle Lake)	1.200 => TCV of Bldg: 1 =		53,501

*** Information herein deemed reliable but not guaranteed***

Property Belonging to Appelate

June 10, 2015

Lincoln Township ZBA
PO Box 239
Lake George, MI 48633

To Whom It May Concern:

Please be advised that Parcel #18-010-460-014-01 (T18N R5W Sec 7 Lots 14-15-16-17 Sherwood's Addition to Lake George Summer Resort) is and has been classified and taxed as Shingle Lake Lakefront in its entirety since its inception. This is in accordance with Michigan State Law MCL 211.34c.

Cordially,

Vicki Cushman, Assessing Officer, Lincoln Twp

Cushman Appraisal
Assessor for Lincoln Township, Clare County

Master copy

Question 3. Should the Township be estopped from denying the requested variance because it granted a building permit on July 1, 2014 which referenced the subject deck?

No the Township should not be stopped from denying the Variance. On June 11, 2014 Mr. Schultz applied for a Zoning Permit for a Modular Home to be placed at 010-460-014-01. The permit was granted with no decks applied for (see Zoning Permit and Site Plan). When Mr. Schultz applied for a Building Permit and the Building Inspector asked if he had an approved Zoning Permit the Owner/Builder told the Building Inspector that yes, Zoning had been approved. No mention was made that decks had been added to the Modular Home plans after zoning approval of the Modular Home.

Township of Lincoln, Clare County
P.O. Box 239
Lake George, MI 48633
Roger Carey, Zoning Administrator
Phone 989-588-9841 Ext. 6 or www.lincolntwp.com

APPLICATION FOR ZONING PERMIT - FEE $25.00

Applicant's Name ALAN SCHULTZ Date 6/11/14
Mailing Address 40060 CARINI
City STERLING HEIGHTS State MICH Zip 48313
Home Phone # 586-668-1330 Cell

ZONING APPLICATION FOR

New Home Construction MODULAR Home Addition/Remodel
Attached Garage Accessory/Utility Bldg
Deck Other (Specify)
Sq. Ft. of Current Residence 600+0 **If Construction is Larger than 120 Sq. Ft. it needs a Building Permit**

THIS APPLICATION MUST BE SIGNED BY THE PROPERTY OWNER(S) OR THE OWNER(S) MAY PROVIDE A LETTER AUTHORIZING THE APPLICANT TO ACT ON THEIR BEHALF.
By signing this you are authorizing the Zoning Administrator to enter your property to validate this permit.

PROPERTY IDENTIFICATION AND LOCATION

Tax ID # 010-460-014-01 Township Section #
Recorded Plot or Subdivision Name
Block # Lot 5 14-15-16+17 Or Attached Legal Description
Property Owner Name ALAN SCHULTZ
Property Owner's Phone # (586) 668-1379 Address of Property 210 BRINGOLD AVE
Nearest Main Road Directions to Property CORNER of SHINGLE LAKER & BRINGOLD AVE

SITE PLAN INFORMATION

Site Plan (drawing or sketch) must be submitted with application. Include all structures on property and indicate the proposed new structure. Measurements must be accurate. Whenever possible please stake out project on the property.

TYPE OF PLAN SUBMITTED Drawing ✓ Sketch

ZONED (CHECK ONE)

R-R Rural Residential
R-1 Single Family Residential ✓
R-2 Single Family/Two Family
R-3 Multiple Family Residential
R-4 Manufactured Home Pk District
C-1 Central Business District
C-2 General Commercial District
M-1 Light Industrial District
M-2 Utility Industrial District

PROPERTY SIZE Width Depth SQ. FEET 4 LOTS

WELL ✓ SEPTIC ✓

CONTINUED ON BACK

SETBACK INFORMATION (MUST BE SHOWN ON SITE PLAN)

Setbacks must be filled in

Note: Setbacks shall be measured from lot lines to the drip edge of the building and/or edge of structure. On the street/road side of house, measure from drip edge and/or edge of structure to street/road Right of Way. Front lot line is street side of lot, except Lake Front Properties where the waterside of the lot is the front.

SEE PRINT OUT FROM CMOHD DATED 4-24-2014

NOTE

SETBACKS FROM LOT LINES

FRONT _____ SIDE _____

BACK _____ SIDE _____

Applicant's Signature Alan Schultz Date 6/11/14

FEE OF $25.00 DUE WITH APPLICATION AT FILING, WHETHER APPROVED OR NOT

All Zoning compliance permits will be null and void if a building permit has not been applied for and paid for, or work has not begun when a building permit is not required, within 120 days of the date the Zoning Compliance Permit is issued. Further, all Zoning Compliance Permits will be null and void if, after application, the building permit is denied or if the work is not completed within the time specified on the building permit.

PLEASE ALLOW AT LEAST 3 (THREE) DAYS TO PROCESS

FOR OFFICE USE ONLY

Date Application was Received by Zoning Administrator 6/16/14 Case # 06/16/14 A

Is approval of White Birch Lakes Association needed? YES _____ NO ✓

Is Property located on a lake? YES ✓ NO _____

Is Property located in a High Risk Erosion area? YES ✓ NO _____

Is Soil and Erosion Permit required? YES ✓ NO _____

Is DNR/DEQ Permit required? YES _____ NO ✓

Application Approved ✓ Application Denied _____

Reason for Denial Alan stated he would be removing old trailer that is on lot.

ZONING VARIANCE REQUIRED YES _____ NO ✓

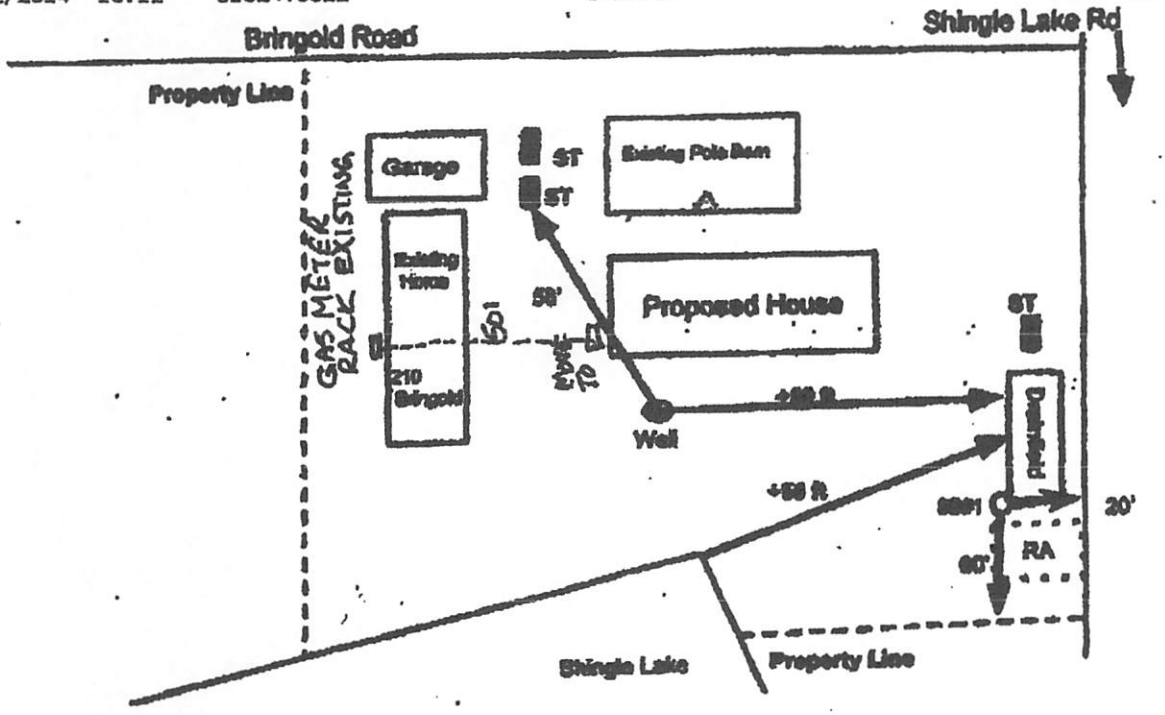
Signed by Roger Carey DATE 6/16/14

Rev. 4/2014

LOT DIAGRAM/SITE PLAN

Show lot lines (show dimensions in feet), Label streets, Show existing structures
Show proposed construction, Show dimensions of all buildings
Show all setbacks from all sides of buildings to property lines in feet.
Contractor/owner will stake 2 adjacent lot lines for the first inspection.

06/02/2014 10:12 8102470322 SCHULTZ PAGE 03



I was with Glenn when Budden measured from Lake & Roads. Structure Placement from Lake was a little over 50 Feet Maybe 52 Feet -

Rogh Cam

Signature Tony Watters for ALAN SCHULTZ. Property # TAX ID 010-960-014-01 Rev. 4/6/14